

		Here, Costco attempts to demonstrate that Plaintiff cannot show evidence of sufficient to support punitive damages with video footage of four incidents, as well as Plaintiff's deposition testimony, and references to the Complaint. This evidence is insufficient to meet Costco's moving burden in demonstrating a lack of evidence. The deposition testimony from Plaintiff is not tantamount to an admission that Plaintiff has no evidence to support his claim for punitive damages, nor does the deposition testimony constitute a factually devoid discovery response. Accordingly, summary adjudication as to Issue Nos. 10 and 11 is DENIED. Moving party to give notice.
113	Reinhardt vs. Bear Brand Ranch Community Association 26-01552314	1. Anti SLAPP Motion Defendant Bear Brand Ranch Community Association ("Defendant") moves to strike the Complaint pursuant to Code of Civil Procedure section 425.16. Plaintiffs Douglas F. Reinhardt ("Plaintiff") opposes the motion. "[T]he anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern. [Citations.] To that end, the statute authorizes a special motion to strike claims 'arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.' " (Wilson v.

Cable News Network, Inc. (2019) 7 Cal.5th 871, 883-884.)

The trial court conducts a potentially two-step inquiry to evaluate an anti-SLAPP motion. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009 (Bonni).) First, the court must decide whether the defendant has met its burden of establishing the plaintiff's claim arises from protected activity in which the defendant has engaged. (Ibid.) Second, assuming defendant has met its burden, the court determines whether the plaintiff has established "there is a probability ... the plaintiff will prevail on the claim." (§ 425.16, subd. (b)(1).) In meeting this burden, "the plaintiff must show the claim has 'at least 'minimal merit.' " (Bonni, at p. 1009.)

1. Step One: Protected Activity

In determining whether a plaintiff's claims arise from protected activity, "the critical consideration is whether the cause of action is based on the defendant's protected free speech or petitioning activity." (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) "At this first step, courts are to 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' [Citation.] The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Bonni, supra, 11 Cal.5th at p. 1009.)

If a plaintiff pleads mixed causes of action based on allegations of both protected and unprotected activity, "analysis of an anti-SLAPP motion is not confined to evaluating whether [the] entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit." (Bonni,

		supra, 11 Cal.5th at p. 1010.) Instead, courts analyze each act supplying a basis for relief to determine whether the acts are protected. (Baral v. Schnitt (2016) 1 Cal.5th 376, 393, 395 (Baral).) “So long as a ‘court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached’ with respect to these claims.” (Bonni, at p. 1010.) But “[a]llegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.” (Baral, at p. 394.) The anti-SLAPP statute identifies four categories of protected activity: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or on an issue of public interest.” (§ 425.16, subd. (e)(1)-(4).) “[B]oard meetings of a homeowners association constitute[] a public forum within the meaning of the anti-SLAPP statute because they serve[] a function similar to that of a governmental body.” (Lee v. Silveira (2016) 6 Cal.App.5th 527, 539.) How members of the board vote during board meetings is a matter of public interest when the decision impacts most, if not all, the HOA
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members. (Ibid.) As such, disputes relating to how board members vote in a homeowner association's board meeting are protected speech when the board is voting on matters within the discretion vested in it by the CC&Rs. (Ibid.)

Here, Defendant argues that Plaintiff's claims for declaratory relief and injunctive relief "arise entirely from ADC and Board decision-making on matters of association governance," in particular, the height and maintenance of Plaintiff's trees. The Court disagrees. Rather, the Court finds that Plaintiff's claim for declaratory relief seeks a judicial declaration as to the legal interpretation of the CC&Rs and that the Association's findings that trees located on Plaintiff's property obstruct the views of adjacent properties located at 5 Inspiration and 4 Inspiration Point and plan to have landscaping maintenance work performed on Plaintiff's property provide context as to why Defendant seeks a judicial declaration on the legal interpretation of the CC&Rs.

Plaintiff argues that Defendant seeks to act beyond the discretion and authority vested in it pursuant to the CC&Rs. Plaintiff contests the limits of Defendant's authority. For example, Plaintiff seeks a judicial declaration as to the legal scope of the easements at issue and whether the CC&Rs grant the Association the "legal right to enter the Subject Property to perform the Landscape Maintenance Work described in the February 16, Letter."

Courts "do not defer to the Board's interpretation of the CC&Rs." (Eith v. Ketelhut (2018) 31 Cal.App.5th 1, 17, as modified (Jan. 14, 2019).) "The interpretation of CC&R's is a legal question to be decided by the courts, not the Board." (Ibid.) "CC&Rs are interpreted according to the usual rules for the interpretation

of contracts generally, with a view toward enforcing the reasonable intent of the parties.” (Ibid.)

Court will, however, defer to “an association board’s discretionary decisions concerning the operation of the common interest development” as “[c]ommon interest developments are best operated by the board of directors, not the courts.” (Eith v. Ketelhut (2018) 31 Cal.App.5th 1, 17, as modified (Jan. 14, 2019).)

Still, the Association does not have the authority to exercise, on its discretion, powers that have not been granted to it by the CC&Rs and related easements. Plaintiff seeks a judicial declaration on the legal interpretation of CC&Rs and related easements in order to clarify the powers granted to the Association by way of the CC&Rs and related easements and the limitations on such powers.

For this reason, the Court finds that Defendant has not established that the causes of action in the Complaint arise from protected activity in which the defendant has engaged. This is a contract interpretation case.

The Motion is DENIED.

2. Step Two: Merits

Given the Court’s determination that the Complaint asks the Court for declaratory relief as to the legal interpretation of the CC&Rs and the breadth of Defendant’s authority based on that interpretation, the Court need not address the merits of the case.

The Court notes, however, that Defendant’s recitation of Plaintiff’s burden in this step is incorrect. Rather, Plaintiff’s recitation is correct.

		After “defendant has met its burden of identifying allegations of protected activity and the claims for relief supported by them, the burden shifts to the plaintiff to demonstrate its claims have ‘have at least ‘minimal merit.’ ” (Osborne v. Pleasanton Automotive Co., LP (2024) 106 Cal.App.5th 361, 375 [bold emphasis added].) “To meet this burden, [the plaintiff] must demonstrate the [complaint] is legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (Chabak v. Monroy (2007) 154 Cal.App.4th 1502, 1512–1513 [internal quotations omitted].) “The burden on the plaintiff is similar to the standard used in determining motions for nonsuit, directed verdict, or summary judgment.” (Id., 1513.) “Thus, the plaintiff need only establish that his or her claim has ‘minimal merit’ to avoid being stricken [pursuant to section 425.16].” (Ibid. [internal quotations omitted].) “In determining whether the plaintiff has met this burden, we ‘consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based’ (§ 425.16, subd. (b)(2)), and ‘accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law.’ ” (Osborne v. Pleasanton Automotive Co., LP (2024) 106 Cal.App.5th 361, 375 [citing Comstock v. Aber (2012) 212 Cal.App.4th 931, 947.] In sum, the Motion to Strike pursuant to Code of Civil Procedure section 425.16 is DENIED.
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		Plaintiff to give notice. 2. Case Management Conference
114	Puterbaugh vs. Oorah, Inc. 21-01216844	Motion to Strike or Tax Costs Defendant, Kars 4 Kids Inc.’s Motion to Strike or Tax Costs set for August 11, 2026, is VACATED. The instant motion to strike or tax costs was filed on June 2, 2026. On July 1, 2026, the Court granted Plaintiff’s ex parte application for an order (1) entering judgment by signature, and (2) staying proceedings. (ROA 496.) In addition, on June 4, 2026, the Court of Appeal issued an order granting the petition for writ of supersedeas filed by Defendant and Appellant Kars 4 Kids Inc. and staying the injunction and “all other proceedings in this action . . . pending resolution of this appeal or further order of this court.” (ROA 470.) As proceedings in this action have been stayed the instant motion to strike or tax costs are vacated. The Court orders the Clerk to give notice.